

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:

JOSE SOSA,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
BRONX County as the
place of trialCITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. GABRIEL BAAITH, P.O. EDWIN
JEREZ and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
offending officers,The basis of venue is:
CPLR 504 (3)

Defendants.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
July 30, 2012
By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007
P.O. Gabriel Baaith, Shield No. 025605, P.O. Edwin Jerez, Shield No. 9352,
46th Precinct 2120 Ryer Avenue Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE SOSA,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. GABRIEL BAAITH, P.O. EDWIN
JEREZ and OFFICER[S] JOHN AND JAMES DOE,
names being fictitious and meant to designate additional
offending officers,

Defendants.

-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF JOSE SOSA

1. At the time of the commencement of this action, plaintiff JOSE SOSA was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about May 19, 2011, P.O. GABRIEL BAAITH was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about May 19, 2011, at approximately 3:40 P.M., P.O. GABRIEL BAAITH was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about May 19, 2011, P.O. EDWIN JEREZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about May 19, 2011, at approximately 3:40 P.M., P.O. EDWIN JEREZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about May 19, 2011, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about May 19, 2011 at approximately 3:40 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about May 19, 2011 at approximately 3:40 P.M., inside apartment 1G of 2301 Creston Avenue, Bronx, New York, the plaintiff JOSE SOSA was improperly arrested, and confined without proper authority, privilege or justification, having no reason in law or in fact to arrest or confine JOSE SOSA.

12. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

13. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

14. That the defendants, their agents, servants and/or employees strip searched the plaintiff JOSE SOSA without a reasonable suspicion that he was secreting evidence within a bodily cavity.

15. That the defendants P.O. GABRIEL BAAITH and P.O. EDWIN JEREZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false

information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unlawful seizure of his person and property without a reasonable expectation that the criminal proceedings would succeed.

16. That defendants, their agents, servants and/or employees continued to detain plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

17. That all criminal charges brought against plaintiff, which were brought under docket number 2011BX028742 and case number 28742C-2011 in the Supreme Court of the State of New York, Bronx County Criminal Division regarding the incidents of May 19, 2011, were dismissed by the Honorable Ethan Greenberg on May 25, 2011, and the criminal proceedings were terminated in plaintiff's favor.

18. As a result of the wrongful arrest, plaintiff was deprived of his liberty and privacy and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal arrest, prosecution and detention, and was otherwise damaged and injured.

19. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without

privilege or any basis in law or fact, and plaintiff being aware of his unlawful confinement, was caused freight, shock, emotional distress and physical consequences.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons at a specific location without any individualized reasonable belief that they had committed a crime, without any probable cause or reasonable basis to do so, for nefarious, unlawful reasons, including to satisfy arrest quotas and subjugate and oppress that community without regard to whether the individuals so detained were themselves engaging in any unlawful actions, and without probable or reasonable cause, and especially and specifically officers of the 46th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority and repeatedly providing false information and testimony, and without reprimand to the offending officers. That said illegal arrests of innocent persons without reasonable or probable cause and conducting strip searches and invasive searches in public and while in custody when there is no reasonable basis to conduct an invasive strip search and without individualized reasonable suspicion of the secreting of evidence within a bodily

cavity, are a matter of policy and record and openly acknowledged or known by the defendants, and therefore condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and is further evidenced by the large amount of dismissals of criminal charges after some other persons, presumably lawfully arrested, confess to the crime alleged . Further, officers of the New York City Police Department, and especially and specifically officers of the 46th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, and testify falsely so often that such conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to plaintiff herein.

21. Patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, KAISON SHAW on February 20, 2009 at the 46th Precinct; SHARON GUILLEBEAU on August 18, 2009 and again on September 23, 2009 at the 46th Precinct and DAVID PALUZZI on or about April 25, 2010 at the 46th Precinct. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity, after wrongfully arresting persons under the guise of an illegal trespass whom the District Attorney then Declined to Prosecute for failure of the arresting officer to cooperate, has occurred to such individuals such as, for instance to CLIFF VASQUEZ on February 13, 2009 after being wrongly arrested at or near 877 Taylor Avenue, Bronx NY and LUIS MEDINA was improperly strip searched without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity, after wrongfully arresting persons under the guise of an illegal trespass on February 2, 2009 at or near 513 Rosedale Avenue, Bronx NY and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://>

www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated. Said policy and procedure of having productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that narcotics officers were expected to make certain arrest goals. Said productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by statements repeatedly made by defendants, to wit, in sum and substance, "it's a drug raid, we have to take everyone" and has occurred to such individuals such as ADEUNA CABRAL, an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and

VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON, ERIN OLIVER, ERIC OLIVER and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and utilizing unreasonable invasive search procedures without individualized reasonable suspicion of a weapon or contraband.

23. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

24. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

25. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

26. That as a result of the foregoing, the plaintiff JOSE SOSA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF JOSE SOSA

27. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 26 as though more fully set forth herein.

28. That on or about August 12, 2011, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on May 10, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

29. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

30. That on or about May 19, 2011 at approximately 3:40 P.M., inside apartment 1G of 2301 Creston Avenue, Bronx, New York, the plaintiff JOSE SOSA was improperly arrested, and confined without proper authority, privilege or justification, having no reason in law or in fact to arrest or confine JOSE SOSA.

31. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

32. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

33. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

34. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing freight, shock, emotional distress and physical consequences.

35. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

36. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

37. That as a result of the foregoing, the Plaintiff JOSE SOSA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF JOSE SOSA

38. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 37 as though more fully set forth herein.

39. That the defendants P.O. GABRIEL BAAITH and P.O. EDWIN JEREZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unlawful seizure of his person and property without a reasonable expectation that the criminal proceedings would succeed.

40. That defendants, their agents, servants and/or employees continued to detain plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

41. That all criminal charges brought against plaintiff, which were brought under docket number 2011BX028742 and case number 28742C-2011 in the Supreme Court of

the State of New York, Bronx County Criminal Division regarding the incidents of May 19, 2011, were dismissed by the Honorable Ethan Greenberg on May 25, 2011, and the criminal proceedings were terminated in plaintiff's favor.

42. As a result of the wrongful arrest, plaintiff was deprived of his liberty and privacy and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal arrest, prosecution and detention, and was otherwise damaged and injured.

43. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

44. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

45. That as a result of the foregoing, the Plaintiff JOSE SOSA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF JOSE SOSA

46. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 45 as though more fully set forth herein.

47. That at and around the aforesaid times and dates alleged herein, the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff, including a strip search without individualized articulable reasonable suspicion of the secreting of evidence.

48. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

49. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

50. That as a result of the foregoing, the plaintiff JOSE SOSA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF JOSE SOSA

51. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 50 as though more fully set forth herein.

52. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

53. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrest of individuals, and in the utilization of invasive search procedures utilized without reasonable individualized suspicion of the secreting of evidence within a bodily cavity.

54. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff JOSE SOSA was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

55. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

56. That as a result of the foregoing, the plaintiff JOSE SOSA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
July 30, 2012


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
JOSE SOSA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Gabriel Baaith, Shield No. 025605, P.O. Edwin Jerez, Shield No. 9352,
46th Precinct 2120 Ryer Avenue Bronx, NY 10457

PLAINTIFF'S VERIFICATION

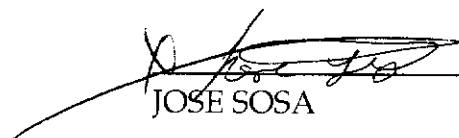
JOSE SOSA affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


JOSE SOSA